

STATE OF NEW YORK

4892--A

Cal. No. 458

2025-2026 Regular Sessions

IN SENATE

February 14, 2025

Introduced by Sens. STAVISKY, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the education law, in relation to physical therapist assistants

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision a of section 6738 of the education law, as
2 amended by chapter 511 of the laws of 2022, is amended to read as
3 follows:
4 a. A "physical therapist assistant" means a person licensed in accord-
5 ance with this article who works under the direction and supervision of
6 a licensed physical therapist performing such patient related activities
7 as are assigned by the supervising physical therapist. Duties of phys-
8 ical therapist assistants shall not include evaluation, ~~[testing,~~
9 interpretation, planning or modification of ~~[patient programs]~~ a
10 patient's plan of care. Supervision ~~[of a]~~ by the licensed physical
11 therapist ~~[assistant by a licensed]~~ shall be continuous but shall not
12 necessarily require the physical presence at the time and place where
13 services are being performed. Provided further, however, such physical
14 therapist ~~[shall be on-site supervision, but not necessarily direct~~
15 ~~personal supervision]~~ must be available for consultation with the phys-
16 ical therapist assistant or patient within a reasonable amount of time
17 pursuant to the commissioner's regulations. The number of licensed
18 physical therapist assistants supervised by one licensed physical thera-
19 pist shall not exceed the ratio of four licensed physical therapist
20 assistants to one licensed physical therapist as shall be determined by
21 the commissioner's regulations insuring that there be adequate super-
22 vision in the best interest of public health and safety. Nothing in this

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 section shall prohibit a hospital from employing physical therapist
2 assistants, provided they work under the supervision of physical thera-
3 pists designated by the hospital and not beyond the scope of practice of
4 a physical therapist assistant. The numerical limitation of this section
5 shall not apply to work performed in a hospital, provided that there be
6 adequate supervision in the best interest of public health and safety.
7 § 2. This act shall take effect one year after it shall have become a
8 law.